

24SMCV04748 24SMCV04748

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TENTATIVE RULING

September 11, 2026

24SMCV04748 (Cohen v. SM 1000

Property LLC, et. al.)

RELEVANT BACKGROUND

This matter arises out of a dog bite incident that occurred on August 6, 2024 at an apartment complex located at 10000 Santa Monica Blvd., Los Angeles, CA (the Premises) owned by SM 10000 Property, LLC (Landlord). Plaintiff Cari Cohen (Plaintiff) was bitten by a dog named Alfredo owned by defendants Miro Darakjian (Darakjian) and Bruna Portugal (Portugal) (collectively, Cross-Defendants or Tenants), resulting in various injuries (the Subject Incident). (UMF 1.) The Subject Incident occurred while Plaintiff, her dog, Tenants, and Alfredo were at the dog park located at the Premises. (Id.) Plaintiff's dog, Koda, was involved in another altercation with Alfredo in April 2024 (the Prior Incident) that was allegedly reported to Landlord. (UMF 3.)

On October 1, 2024, Plaintiff filed her complaint against Landlord, Darakjian, and Portugal, alleging (1) negligence and (2) premises liability.

On June 16, 2025, Landlord filed a cross-complaint against Darakjian and Portugal (Cross-Defendants), alleging five causes of action: (1) equitable indemnity; (2) express indemnity; (3) breach of contract; (4) negligence; and (5) contribution.

On July 24, 2026, the Court denied Landlord's motion for summary adjudication of its cross claims against Tenants for express indemnity and breach of contract.

INSTANT MOTION

On April 24, 2026, Landlord filed the instant motion for summary judgment of Plaintiff's claims for negligence and premises liability. Plaintiff filed an opposition, and Landlord filed a reply.

EVIDENTIARY OBJECTIONS

Landlord's objection
Nos. 1-17 are sustained.

Plaintiff's objections
Nos. 1-8 are overruled.

DISCUSSION

I.

MOTION FOR SUMMARY JUDGMENT

In California, a landlord is not liable for injuries inflicted by a tenant's animal unless the landlord had prior, actual knowledge of the animal's dangerous propensities. (*Uccello v. Laudenslayer* (1975) 44 Cal.App.3d 504, 510–511; see also *Yuzon v. Collins* (2004) 116 Cal.App.4th 149; *Donchin v. Guerrero* (1995) 34 Cal. App. 4th 1832, 1839.) “[A] landlord does not owe a duty of care to protect a third party from his or her tenant’s dog unless the landlord has actual knowledge of the dog’s dangerous propensities, and the ability to control or prevent the harm.” (*Chee v. Amanda Goldt Property Management* (2006) 143 Cal.App.4th 1360, 1369.) A landlord has no duty to inspect the premises to discover a tenant's dangerous animal. (*Martinez v. Bank of America Nat. Trust & Sav. Ass'n* (2000) 82 Cal.App.4th 882, 891–892.)

“[A] defendant's actual knowledge

may be shown, not only by direct evidence, but also by circumstantial evidence. Hence, his denial of such knowledge will not, per se, prevent liability. [Citations.] Actual knowledge can be inferred from the circumstances only if, in the light of the evidence, such inference is not based on speculation or conjecture. Only where the circumstances are such that the defendant 'must have known' and not 'should have known' will an inference of actual knowledge be permitted. [Citation.]" (Uccello, 44 Cal.App.3d at p. 514; see, e.g., Yuzon, 116 Cal.App.4th at p. 164 ["The canine behavior that [the landlord] observed...was limited to pushing, barking, and jumping at the screen door... [t]he sorts of behaviors described in the record were normal dog behaviors and were not so alarming that Collins must have known (had he been aware of the behaviors) of [the dog's] vicious propensities."].)

The Court of Appeal has held that knowledge of a dog's vicious propensities toward humans cannot be predicated on that person's knowledge of the dog's vicious propensities toward other dogs. (See *Hensley v. McBride* (1931) 112 Cal.App. 50, 51 ["In our opinion the evidence in the present case was insufficient to show knowledge that the dog had previously exhibited any vicious propensities toward either human beings or other animals. As there was no evidence whatever showing any vicious propensities toward human beings, the trial court omitted all reference thereto in its findings. Even assuming that evidence of knowledge of a few fights or tussles over a period of years was sufficient to charge the owner with knowledge that the dog was possessed of vicious propensities toward other dogs, liability for injury to a person may not be predicated on such knowledge."].) Although *Hensley* involved claims against the owner of the dog, rather than a landlord, there is no reason the same rule would not apply to a landlord such as Defendant here.

Here, Landlord argues that no triable issue of material fact exists as to whether it had actual knowledge of the allegedly dangerous propensities of the dog, Alfredo. In support, Landlord references the following deposition testimony:

Darakjian testified in deposition that he did not report the April 2024 incident to Landlord (UMF 4). Portugal testified in deposition that she never reported either the Subject Incident or the April 18, 2024, Prior Incident to Landlord. (Id. 5). Plaintiff testified in deposition that she reported the April 2024 incident by going to the front desk of the subject property a few days after it happened, but she could not recall the name of the person at the front desk to whom she spoke. (Id.

6.) Plaintiff also testified about a text message exchange between her and co-defendant Bruna Portugal, wherein the two are discussing the alleged April 18, 2024, Prior Incident. (Id. 5 and 6.) In this exchange, Plaintiff tells Bruna Portugal that her dog Koda is fine and that Tenants' dog Alfredo is a "good boy," who did not mean to hurt Plaintiffs' dog. (Id. 5 and 6). Landlord's Director of Security, Jimmy Jackson (Jackson), testified in deposition that he is not aware of any surveillance footage capturing any incidents involving the dog, Alfredo, prior to the Subject Incident or any reports of aggressive behavior by Tenants' dog. (Id. 7). Plaintiff's former boyfriend and current tenant, Michael Straumietis (Straumietis), testified that he spoke to a person at the front desk, the front doormen, and employees of the Landlord, named "Humberto or Alberto", "Mario" and "Terrance" about the Prior Incident. (Id. 8). SM's general manager, Nicole Browne (Browne), testified that she was not aware of any incidents involving Tenants' dog, Plaintiff, and/or Plaintiffs' dog that occurred prior to the Subject Incident on August 6, 2024, and that she found out about the alleged Prior Incident only after litigation in this matter commenced. (Id. No. 9).

In opposition, Plaintiff argues that Landlord had knowledge of Alfredo's dangerous tendencies because of the Prior Incident on April 18, 2024, where Plaintiff's dog was involved in another altercation with Alfredo. Plaintiff argues that "there are triable issues of material fact as to whether: 1. Ms. Cohen or Mr. Straumietis reported the April 2024 incident; 2. SM10000 knew about other incidents involving Alfredo prior to the August 2024 incident; 3. the circumstantial evidence (surveilling 24/7 and record-keeping failures) supports an inference that SM10000 must have known of Alfredo's dangerous propensity prior to the subject incident." (Opp. at p. 6:12-16.) Plaintiff cites *Uccello*, 44 Cal.App.3d at p. 514.

In reply, Landlord argues that the April 2024 Prior Incident does not create a triable issue of material fact because that incident involved Alfredo and another dog, Koda, rather than a human. (Plaintiff's AUMF Nos. 11 – 12). Landlord highlights that no person was injured and that California courts have held that a dog's aggression toward other animals does not establish knowledge of dangerous propensities toward humans, citing *Hensley*, 112 Cal.App. at pp. 51-52.) The Court agrees.

The Court finds that Landlord has satisfied its burden as the moving party by showing that there is no triable issue of material fact that as to whether it had actual

knowledge of Alfredo's dangerous propensities towards humans and that Plaintiff has failed to provide any evidence in opposition to raise a triable issue of material fact. (See UMF 1-10.) There is no evidence that Landlord had notice of Alfredo's dangerous propensities towards humans. Additionally, Landlord's general manager, Nicole Browne, testified that she was not aware of any incidents involving Tenants' dog, Plaintiff, and/or Plaintiffs' dog that occurred prior to the Subject Incident on August 6, 2024. (UMF No. 9.) The Court is not persuaded by Plaintiff's contentions regarding the April 2024 Prior Incident involving Alfredo and another dog, Koda. Even if Landlord had knowledge of the Prior Incident, it would be insufficient to show that Landlord had knowledge of any dangerous propensity of Alfredo towards humans, as the Prior Incident involved another dog rather than a human. (Hensley, 112 Cal.App. at p. 51.) Plaintiff presents no other admissible evidence to raise a triable issue of material fact as to whether Landlord had actual knowledge of the dog's dangerous propensities towards humans.

Accordingly, Landlord's motion for summary judgment is GRANTED.